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25STCV19721 Afzali v. Los Angeles-M, Inc., et al.

Tuesday,

August 11, 2026

[TENTATIVE] ORDER DENYING DEFENDANTS, LOS ANGELES-M, INC. AND LITHIA MOTORS, INC.'S, MOTION TO STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT (1316)

I. BACKGROUND

The

complaint alleges Defendants discriminated and retaliated against Plaintiff during Plaintiff's employment in violation of the Fair Employment and Housing Act and the Labor Code. Defendants move to strike the claim for punitive damages.

II. LEGAL STANDARDS

A

motion to strike is limited to matters that appear on the face of the pleading or on any matter of which the court can take judicial notice. (Code Civ. Proc., § 437.) The court may strike out any irrelevant, false, or improper matter inserted in any pleading; or strike all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §436 subd. (a)-(b).)

To support recovery of punitive damages,

Plaintiff can allege ultimate facts. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255 ["In order to survive a motion to strike an

allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. A plaintiff may recover on a claim for exemplary damages wPlaintiffse the defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294 subd. (a).)

The predicate acts to support the claim

must be intended to cause injury or must constitute "malicious" or "oppressive" conduct. "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of otPlaintiff'ss."

(Civ. Code, § 3294 subd. (c)(1); College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725 ["malice involves awareness of

dangerous consequences and a willful and deliberate failure to avoid

them"].) "Oppression" is defined as "despicable conduct that

subjects a person subjects a person to cruel and unjust hardship in conscious disregard of that person's rights."].) In otPlaintiff's

words, absent an intent to injure the plaintiff, the conduct must be

"despicable" defined as "base, vile, or contemptible." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 724.)

A.

Untimely

filing of the motion to strike

As

Plaintiff observes, a party may file a motion to strike within the time allowed

to respond to the pleading. (Code Civ. Proc., § 435.) However, the Court has discretion to strike a pleading or any part of a pleading at any time. (Code Civ. Proc., § 436.) Defendant cites Jackson v.

Doe (2011) 192 Cal.App.4th 742 for the proposition that the Court may

consider an untimely motion to strike "so long as its action does 'not affect the substantial rights of the parties.'" (Jackson at 750.)

Plaintiff

has timely filed an opposition, which the Court has considered. Plaintiff has not identified any substantial right that has been affected by the late filing.

B.

Judicial

notice

The

Court grants Defendants' request for judicial notice of the complaint but not of the corporate filings with the Secretary of State. Defendants' status as corporations in fact is not necessary to consider the merits of Defendants' motion. Plaintiff alleges that the Defendants, both corporations, are authorized to do business in California, which the Court accepts as true. (Complaint, ¶ 2.)

The

Court denies Defendants' request to take judicial notice of another trial court's determination on a motion to strike. The ruling did not consider *Kiseskey v. Carpenters' Trust for So. California* (1983) 144 Cal.App.3d 222, 235 (discussed below.)

C.

Plaintiff

has adequately alleged corporate ratification.

Liability

for punitive damages will not be imposed against a corporate employer absent proof of advance knowledge of an employee's unfitness or ratification of that employee's conduct by an officer, director or managing agent. (Civ. Code, § 3294 (b).) The statute governs the necessary proof to impose such liability; it does not govern the standard of pleading.

Defendants

have not cited any authority that requires Plaintiff to specifically identify the person who ratified the conduct on behalf of Defendants. In *Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, 614, the Court determined that a motion to strike should have been granted because "plaintiff has not pleaded that acts of employees of defendant corporation were done with the knowledge or under the express direction or ratification of an officer, director or managing agent of the corporation so as to justify exemplary damages against the corporation." (Id.) These are ultimate facts which are sufficient to support a claim for punitive damages showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

As

Plaintiff observes in opposition, the Court, in evaluating whether the punitive damage allegations are sufficient, reads the complaint as a whole, "all parts in their context, and assume their truth;" allegations are not read in isolation. (Id.)

Both

parties cite *White v.*

Ultramar, Inc. (1999) 21 Cal.4th 563, which appealed from a verdict after a jury trial on grounds the plaintiff did not "show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business" in order to be regarded as a "managing agent." (*White* at 577.) It is not instructive on the adequacy of pleading.

Whether

a principal authorized the doing and manner of the act can be alleged using "conclusional words." (*Kiseskey v.*

Carpenters' Trust for So. California (1983) 144 Cal.App.3d 222, 235; *O'Hara v. Western Seven Trees Corp.* (1977) 75 Cal.App.3d 798, 806 ["The corporate respondents contend that no facts are alleged to support punitive damages against them. But it was alleged that the misrepresentations were made by persons who acted 'with the permission and consent' of all the defendants. For the purpose of meeting a general demurrer, this was a sufficient allegation that the corporations had authorized their agent's acts; a corporation is liable for punitive damages when it authorizes the wrongful act."].)

While

neither party cited *Kiseskey*, it is instructive. There, the complaint did not identify a managing agent either by name or facts to support a finding that a managing agent ratified the conduct. Rather, the court "conclude[d] that the conclusional words 'permission and consent' used in the FAC, coupled with the factual allegations therein, constitute an allegation, sufficient if proven, upon which punitive damages may be assessed against defendant for the conduct of its agents." (Id. at 235.)

Here,

Plaintiff has similarly alleged that each Defendant was acting "with the permission and consent of the co-Defendants." (Complaint, ¶ 3.) The pleading also asserts that "[a]ll actions of Defendants were taken by employees, supervisors, executives, officers, and directors during employment with Defendants, were taken on behalf of Defendants, and were engaged in, authorized, ratified, and

approved of by all Defendants.” (Complaint, ¶ 4.) Corporate ratification is supported by the allegations.

D.

Plaintiff

has alleged specific facts showing malice or oppression.

In a civil action under FEHA, “all relief generally available in noncontractual actions, including punitive damages, may be obtained.” (Commodore Home Systems, Inc. v. Superior Court (1982) 32 Cal.3d 211, 221, 220 [“California law long has recognized that discharges in violation of public policy may be actionable torts for which punitive damages can be recovered under Civil Code section 3294.”].) An employee’s right to be free from discrimination is a civil right, and “plaintiff’s status as an employee should entitle him to a greater degree of protection from insult and outrage than if he were a stranger to defendants....”(Commodore at 220.) The right to seek and hold employment free of prejudice is fundamental and such discrimination “foments domestic strife and unrest, deprives the state of the fullest utilization of its capacities for development and advance, and substantially and adversely affects the interest of employees, employers, and the public in general. (§ 12920.) The statute’s aim is to provide effective remedies against the evil.” (Id.)

The complaint alleges that Plaintiff

suffered disabling injuries in a non-work-related accident. (Complaint, ¶ 50.) Plaintiff sent Defendants regular progress notes from Plaintiff’s doctor supporting each request for additional time off.

(Complaint, ¶ 51-52.) Four months later, Plaintiff informed Defendants that

Plaintiff was ready to return to work and asked what Plaintiff needed to do in order to return. (Complaint, ¶

53.) The complaint alleges that “Plaintiff was informed that Defendants are not

doing any rehires and that Plaintiff has been fired. In response by another supervisor,

Plaintiff was informed that Plaintiff should have returned to work a while ago

and that Plaintiff cannot return to work anymore.” (Complaint, ¶ 53.) Plaintiff

alleges the misconduct violated FEHA which precludes discrimination and retaliation on the basis of disability.

The complaint alleges that Plaintiff’s

medical condition, medical leave, protected leave, need for accommodation,

disability (actual and/or perceived), and applying for state disability leave, substantially

motivated Defendants’ termination of Plaintiff’s employment. (Complaint, ¶ 63.)

These facts, if true, are sufficient to support a jury's finding that Defendants' conduct was "despicable" and constituted malice and oppression. Defendants allegedly refused to accommodate Plaintiff as required by statute, did not engage in a good faith interactive process, and then immediately terminated Plaintiff, all in disregard of Plaintiff's rights.

III.

CONCLUSION

Based on the foregoing, Defendants' motion to strike is DENIED.